

Briefing Order

Certified record ready for briefing

On March 6, 2025, the court enters this briefing order. The records office completed and transmitted the stipulated correction on March 3, and the court approved it on March 5. The certified administrative record contains eighteen agency PDFs and continuous pages AR1–AR238, including the unchanged P-7 declaration at AR33–AR50. The itemized index preserves the February 18 transmission, identifies the correction, verifies the P-7 digest, and excludes the post-order proffer. The court adopts that set as the record for merits briefing.

Appellate filings retain their separate PA citations. PA1–PA8 may be cited to describe the denied supplementation request and its procedural history, but not as evidence of a fact the agency considered. The correction order likewise establishes document composition rather than the truth of P-7. Counsel must maintain those distinctions in the statement of facts, argument, and any oral presentation.

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Principal and reply deadlines

The court's March 5, 2025 approval made the corrected administrative record available for briefing. Under 8 U.S.C. § 1252(b)(3)(C), the petitioner must serve and file the opening brief no later than forty days after that date, making A.R.M.'s opening brief due April 14, 2025. The institutional respondent's principal response brief is due and shall be served on May 14, 2025. The same statute permits the petitioner to serve and file a reply brief no later than fourteen days after service of the Attorney General's brief. A.R.M.'s reply brief is therefore due May 28, 2025. Each filing must use the required principal-brief fields, identify the issues presented, cite the continuous AR pages for agency-record facts, cite controlling authorities accurately, and certify electronic service. No extension is granted by this order.

The opening brief should state the requested disposition without asking the court to find disputed facts. The response should distinguish disagreement about evidence weight from disagreement about whether the agency's reasoning can be followed. The reply may answer the response but should not introduce a new record. The clerk will determine whether oral argument is scheduled after the briefs are complete and will issue a separate calendar notice if argument is set.

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Issues preserved and service

Briefing may address correction versus supplementation, aggregate CAT risk, official acquiescence, meaningful consideration, the statutory standard governing agency findings, petition timing, and the appropriate remedy. The record orders have resolved only which materials belong to the agency record. They do not prejudge whether the Board applied the governing legal standards, whether its explanation permits review, or whether remand is required.

The parties should identify the exact relief associated with each issue. A request to vacate and remand must explain what analysis remains for the agency; a request to deny the petition must explain why the existing reasoning suffices. Neither side may treat the post-order proffer as merits proof. The clerk shall serve this order on petitioner's counsel and respondent's counsel on March 6, 2025 and record the three filing dates on the docket.